

# 25STCV31243 25STCV31243

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-04

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C224%2C08%2F04%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C08%2F04%2F2026)

Source SHA-256: b84627d02e74b0b974da494957f42791bf5a4fd530519cf9bc77a2f8e2760d9f

Case Number: 25STCV31243 Hearing Date: August 4, 2026 Dept: 224

Bisnar v. Jeoung Kuy Choi et al.,

## TENTATIVE RULING

The Court SUSTAINS Defendant's Demurrer to the first, second, and third causes of action with 30 days leave to amend. The Court OVERRULES Defendant's Demurrer as to the fourth cause of action.

The Court continues the Case Management Conference Scheduled for August 14, 2026 to October 30, 2026 at 9:00 a.m.

## ANALYSIS

### I. INTRODUCTION

Plaintiffs Diane Bisnar and Ismael Hernandez ("Plaintiffs") are tenants of Defendant Jeoung Kuy Choi ("Defendant") in a unit at 1564 S. Hobart Blvd., Los Angeles, CA 90006 (the "Property"). (Compl., ¶ 5.) Plaintiffs allege that the Property suffered from defects after Defendant became Plaintiffs' landlord in the LARSO-protected unit that rendered it untenable. (Id. at ¶ 6.) Also, Defendant perpetrated a sustained campaign of harassment against Plaintiffs, including directing inappropriate remarks at Plaintiffs and failing to maintain a habitable living condition for Plaintiffs. (Ibid.)

On October 24, 2025, Plaintiffs filed a Complaint alleging (1) Negligence; (2) Breach of Implied Warranty of Habitability; (3) Civil Penalties and Damages for Harassment in Violation of Los Angeles Anti-Harassment Ordinance, LAMC Section 45.30 et. seq.; and (4) Violation of Civil Code section 1942.4.

On December 3, 2025, Defendant filed a Demurrer to all four causes of action in the Complaint.

As of the deadline to file an opposition and when the Court is preparing this ruling, no opposition has been filed. The Court will not consider unauthorized late oppositions, absent leave of court.

### II. LEGAL STANDARD

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.” (Code Civ. Proc. [AW13.1]§ 430.10.) “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal. App. 5th[AW14.1] 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.* [AW15.1]; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

### III. DISCUSSION

Defendant demurs to all four causes of action in the Complaint.

#### A. Meet and Confer Requirement

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) “The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).) A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, Defendant, in pro per, has not submitted a declaration with the Demurrer stating that he has met and conferred with Plaintiffs. Instead, Defendant has attached a letter addressed to Plaintiffs’ attorney stating that it is Defendant’s “meet/confer for [his] demurrer.” (See Attachment to Demurrer.) The Court finds the meet and confer attempt to be insufficient, but uses its discretion to consider the Demurrer on its merits.

#### B. Negligence

Defendant argues that the Complaint only states that there is a landlord-tenant relationship, and does not allege duty, breach, or causation sufficiently or specifically.

The elements for a negligence claim are (a) a legal duty to use due care; (b) a breach of such legal duty; and (c) the breach as the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

The Complaint alleges that Defendant owed a general duty of care to Plaintiffs from their landlord-tenant relationship, which included providing Plaintiffs with a safe, habitable, and tenantable dwelling complying with Los Angeles Municipal code and the Civil Code while acting as landlords or property managers. (Compl., ¶ 8.) The Complaint also alleges that the duty of care arises under both common law and Section 36900 of the Government Code that renders actionable any violation of a municipal ordinance or building code. (Ibid.) Thus, the Complaint sufficiently states facts to establish a duty of care.

However, the Court agrees with Defendant that the Complaint fails to allege facts that demonstrate how Defendant breached the alleged duty. The Complaint states in conclusory language that Defendant has breached his duties by failing to maintain the Property in a habitable condition. (Id. at ¶ 9.) The Complaint is completely deficient of any facts that demonstrate how Defendant failed to maintain the Property in a habitable condition. Plaintiffs have only stated that the Property suffers from defects and has been rendered untenable without any facts to support these allegations. (Id. at ¶ 6.) Plaintiffs' conclusory statements are insufficient to state a cause of action for negligence.

Accordingly, the demurrer to the first cause of action is SUSTAINED with leave to amend.

### C. Breach of Implied Warranty of Habitability

Defendant argues that Plaintiffs have merely pled legal conclusions. Defendant argues that Plaintiffs have not sufficiently pled notice, failure to repair, or damages.

To establish a breach of the implied warranty of habitability, Plaintiffs must establish (1) "the existence of a material defective condition affecting the premises' habitability," (2) "notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition," (3) "the landlord was given a reasonable time to correct the deficiency," and (4) "resulting damages." (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.)

The Court agrees with Defendant. Plaintiffs have pled no facts as to what the materially defective condition affecting the premises' habitability was, nor did they plead any facts demonstrating that Defendant had actual or constructive notice of those defects. The Complaint states "Defendant breached the implied warranty of habitability because Plaintiffs' units suffered from, among other things, all of the conditions as mentioned throughout this complaint" but does not actually allege any conditions throughout the complaint. (Compl., ¶ 13.) Also, Plaintiffs have not pled any facts as to whether Defendant was given a reasonable time to correct the alleged deficiency.

Because the Complaint fails to allege sufficient facts, the Court SUSTAINS the demurrer to the second cause of action with leave to amend.

### D. Civil Penalties and Damages for Harassment in Violation of Los Angeles Anti-Harassment Ordinance, LAMC Section 45.30 et. seq.

Defendant argues that Plaintiffs have failed to allege facts of harassing conduct, bad-faith intent, causation, or damages.

LAMC section 45.33 is codified under the Tenant Anti-Harassment Ordinance in Article 5.3 of the LAMC. LAMC section 45.35 explicitly provides for a private right of action in that "[a]n aggrieved tenant under this article . . . may institute civil proceedings as provided by law, against any landlord violating any of the provisions of this article and any person who aids, facilitates, and/or incites another to violate the provisions of this article, regardless of whether the rental unit remain occupied or has been vacated due to harassment." (LAMC, §45.35.) It defines "tenant harassment" as "a landlord's bad faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm." (Ibid.) "Bad faith" refers to willful, reckless, or grossly negligent conduct. (Ibid.) Examples of tenant harassment include (1) reducing, eliminating, or threatening to reduce or eliminate housing services required by a lease, contract, or law; (2) failing to perform and timely complete necessary repairs and maintenance; (3) abuse of the right of access into a rental unit; (4) threatening a tenant or their guests; (5) attempting to coerce the tenant to vacate; (6) enticing a tenant to vacate a rental unit through a misrepresentation or

concealment of a material fact; (7) threatening or terminating tenancy service based on facts which the landlord has no reasonable cause to believe to be true; (8) threatening or engaging in any act or omission which interferes with the tenant's right to use and enjoy the rental unit or whereby the premises are rendered unfit for human habitation and occupancy; and more. (Ibid.)

The Complaint is devoid of any facts demonstrating that Defendant's bad faith conduct directed at Plaintiffs. Plaintiffs have merely stated that Defendant has engaged in harassment by failing to timely address habitability issues and allowing disturbance of peace without alleging any facts as to those conclusions. (Compl., ¶ 19.)

Because Plaintiffs have failed to state sufficient facts, the Court SUSTAINS the demurrer to the third cause of action with leave to amend.

#### E. Violation of Civil Code section 1942.4

Defendant argues that Plaintiffs have failed to sufficiently state facts demonstrating failure to repair, unlawful rent collection, or that the tenant occupied the unit lawfully.

"A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice:

(1) The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2."

(Civ. Code, § 1942.4.)

The Complaint alleges that the unit was found to be in substantial violation of Civil Code section 1941.1 and Health and Safety Code section 17920.3. (Compl., ¶ 23.) The Complaint also alleges that a public employee responsible for the enforcement of Public Health laws inspected the Property and provided written notice to Defendant of untenantable conditions existing at the Property. (Ibid.) The Complaint alleges that the conditions remained unabated for more than 35 days and Defendant continued to demand and collect rent. (Ibid.) Plaintiffs allege they were not in violation of any of their affirmative duties as a tenant that may have substantially contributed to the untenantable conditions described above. (Ibid.) Thus, Plaintiffs have sufficiently stated a cause of action under section 1942.4.

Accordingly, the Court OVERRULES the demurrer as to the fourth cause of action is overruled.

#### IV. CONCLUSION

The Court SUSTAINS Defendant's Demurrer to the first, second, and third causes of action with 30 days leave to amend. The Court OVERRULES Defendant's Demurrer as to the fourth cause of action.

The Court continues the Case Management Conference Scheduled for August 14, 2026 to October 30, 2026 at 9:00 a.m.

Court Clerk to give notice.

Parties who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order.